

****Beyond ChatGpt, Artificial Intelligence Will Enter Our Brain. Interview with Guido Scorza****

Artificial intelligence, privacy, copyright, data transfer between Europe and the United States, Cloud Act, and the neuroverse. We spoke with Guido Scorza, a member of the Italian Data Protection Authority, about the most "hot" issues at the intersection of private life and frontier technologies. The interview, recorded at Utopia Studios, is available both in video and in this transcript.

****Interview with Guido Scorza, Member of the Italian Data Protection Authority****
(by Giorgio Rutelli, "Formiche", July 5, 2023)

The Italian Data Protection Authority has become famous worldwide for the measure that did not block ChatGpt as the headlines suggested (but we journalists have to make headlines), but rather asked OpenAI to comply with a minimum set of rules regarding data processing. The company then adjusted some things and reinstated its platform online in our country. What happens to our data today when we use generative artificial intelligence?

First of all, I would say that we are closer to the starting whistle than to the final triple whistle of a match. The urgent phase with OpenAI has concluded: we told them that what we were seeing was far from what European privacy regulations suggest, and that a company wishing to provide that kind of service must comply with. An immediate dialogue began with ChatGpt, as mentioned earlier, and we adopted a second urgent measure, with a series of prescriptions, which did not fix everything but addressed the emergency. OpenAI committed to doing this with deadlines, the last of which relates to age verification, which will arrive by the end of September, and thus reopened the service in Italy. Currently, there is a substantive proceeding pending before the Italian authority to understand whether OpenAI violated, and to what extent, the privacy rights of individuals living in Italy. That proceeding will conclude as all proceedings do, that is, with a partial or total dismissal, with a sanction, or with corrective measures instructing OpenAI to do more and do better to comply with the rules.

****Are there other authorities investigating these systems in Europe?****

The same concerns we raised at that time have been echoed by a number of other authorities. This was discussed in the European Data Protection Board, the European committee that brings together all data protection authorities, which has established a task force that will not manage individual national investigations but will seek to identify a common denominator in terms of the principles that national authorities should follow in managing the proceedings before them.

It has also happened that other data protection authorities, both European and non-European, have opened independent investigations against OpenAI: this has occurred in France, Spain, Canada, and other countries around the world, confirming that the issues are fundamentally the same. We need to understand if and to what extent these artificial intelligences can be considered compatible with European privacy regulations. And if the answer were no, we would have a much bigger problem than the one addressed in the proceeding with OpenAI.

****What is the main problem?****

The overarching theme is: what legal basis allows someone to collect, through scraping, a massive amount of data to train algorithms? Simplifying what is not simple, there could be a single legal basis in the GDPR, which is the so-called legitimate interest. A company can process personal data, even for commercial reasons, because it has a legitimate interest that can be considered predominant over the right to privacy. The data subject always has the right to raise their hand and say enough, that is, to exercise the right to object. Objectively, the legitimate interest, when it was conceived and included in the GDPR, was not designed for this type of case. Therefore, the biggest question that not only we in Italy, but all data protection authorities in Europe must now face, hopefully with a common position, is whether this legitimate interest is acceptable, and if so, under what conditions.

Without wanting to anticipate the decisions that will come, even if there were agreement, we would still need to agree on one fact: at least an obligation to inform all interested parties that their personal data could be sent to a server somewhere around the world – to then be fed to algorithms – is essential. In the case of OpenAI, this warning was missing, as in many other similar cases.

The issue becomes very delicate because these systems guarantee the best results if our conversations are recorded and archived, as they train the machine to know us better. And unlike a search engine, which returns a series of results, there is a back-and-forth interaction, with chatbots aiming to create empathy and gain our confidences. On the positive side, we could have AI personal assistants that pay fines, negotiate compensation with airlines, and book restaurants on our behalf. On the negative side, they will know everything about us, in a more intimate and private way than ever before. What happens if this "sensitive" data is stolen? Or sold to companies and insurance firms, to profile us in a much more advanced way than when we like something?

****To a gelato shop or do we geolocate ourselves at the museum?***

The starting point is certainly this: with chatbots, we open up much more than in a "monologue" or by unidirectionally questioning a digital service, no matter how useful it may be. And the endpoint is what was represented earlier. We would not be able to resist simplicity: everything we use in the digital universe has essentially conquered us by simplifying our lives. Therefore, I believe that objectively the only antidotes we have and will have in the future revolve around two words: awareness and self-determination. The secret lies in knowing, understanding, and being aware of how much and what we share and with whom, and in having every time the possibility, in the most precise way possible, to decide whether or not to share information that concerns us.

I do not believe in universal rules that tell everyone what can be collected or not, what can be shared or not, because the strength, which is also the complexity, of the right to privacy is to grant each person the right to trace the boundary between the public sphere, the private sphere, and the secret sphere of our existence. The cornerstone is that each person chooses after fully understanding what the implications are. And here the implications are certainly the risk that by handing over part of ourselves to a commercial entity, then at any given moment of an incident involving that entity, what was meant to remain private, or at the limit to be shared between us and AI algorithms, becomes public domain.

But what perhaps worries me the most is that when knowledge is ceded, personal information is given up; when we allow someone or something to know us so well, we effectively relinquish a bit of our freedom and our right to choose, which also belongs to the everyday experience of each of us. If someone starts to know you very well, they know how to engage you, they know how to lead you to respond to a question in the way they would like you to respond, whatever the question may be, whether it concerns personal, professional, political, cultural, or commercial matters. Opening ourselves up so much to someone or something means placing someone or something in a position to compress our right to self-determination. Choices that today are normally those of consumption, but tomorrow could be of an educational or political nature.

You have written a book called "Neuroverse," which analyzes the ability of technology not only to read our minds but also to modulate what is inside. Elon Musk with Neuralink is connecting our brains to a machine, to read these impulses and transform them into data that can be analyzed with a computer. How far do you think we are from the moment when this transition will not only be in "download" but also in "upload"? Will we be able to learn things without realizing it, or be manipulated in our choices and opinions?

Today, one of the most difficult professions is that of a science fiction writer, in the sense that it is really hard to imagine something without running the risk that before the book is published, it is already a reality. The same goes for neuroscience and neurotechnologies. The most fascinating thing, but which also makes them very common to issues of AI, is that we are actually always talking about solutions that are neutral with respect to good or evil. Neurosciences and neurotechnologies, with their progress, are literally restoring hope for a normal life to people who had lost it, as in the case of paraplegics who regain the ability to walk, or people in a vegetative state who regain the ability to communicate with their loved ones, even if in a different form, and naturally the miracles (because we will continue to call them that for a long time) in the medical and clinical field are essentially limitless.

It would be sacrilegious to label them as dangerous; they are extraordinarily useful just like artificial

intelligence. However, neuroscience and neurotechnologies certainly share one issue: to function, they must unlock the secrets of the human brain, our unexpressed thoughts, which are the last certain frontier of the right to privacy, the last stronghold where we can feel safe; no one can know what I thought but did not say and share. This is no longer true, at least in relation to elementary thoughts (yes or no, right or left) in the sense that we are already exposed to external brain reading.

And if neuroscience and neurotechnologies move out of the clinical field and into the commercial one? Beyond the rules and laws, there is of course a self-discipline and an ethics of the doctors and scientists who work, and there is a legitimate end above any suspicion, that of health. But we must be careful about what the market will want to do with it: exploring the human brain and knowing what I like or do not like, not because you asked me but because you read it in my unexpressed thought is the forbidden dream of anyone involved in marketing, whether commercial or political.

To be able to overwrite that thought, which is a frontier that is already being intensely worked on and is now close to becoming reality, means obviously being able to change someone's mind not because you have convinced them of the goodness of your thesis but simply because you have erased their position like on a sheet of paper and replaced it with yours. There is an important movement that is asking whether new neuro-rights are needed, a new complex of rules capable of governing a field in which we had not yet ventured. Is it enough to extend the rules we have? We can only hope that this so-called "mental privacy" survives for a

****Translation of Legal Document Text****

because then we know that all milestones are there to be surpassed.

A topic we have often addressed on Formiche.net is that of data transfer between Europe and the USA.

On this highway passes the bulk of personal data, from companies and governments. There have been two rulings from the Court of Justice of the European Union that invalidated the previous rules; now we are at a new turning point, or at least we were already a year ago, when Joe Biden and Ursula von der Leyen reached a political agreement, which was followed by an executive order from the American president. Where do we stand? Has the European Union gotten a bit stuck in this process? Yet citizens and companies want to know with certainty how their data moves, without fear of using the services offered by American companies.

The situation is extraordinarily complicated, so it is difficult even to say whether we are taking too long or too little time. The problem that the judges of the EU Court of Justice have raised repeatedly is related to the cultural-legal misalignment of two legal systems, the European and the American, and as such, it is a problem that can only be resolved from within, rewriting laws here and there, laws that are guardians of cultural principles in which the two continents recognize themselves.

The USA, post-September 11, is being asked to review what have rightly or wrongly become rules etched into the chromosomal heritage of that country, whereby in the name of national security, access to data must be granted.

After the meetings between Biden and von der Leyen, and the executive order bears witness to this, there is evidence of a sincere willingness to reopen the transparent and lawful transit of data between Europe and the USA. However, the European regulators, gathered in the Board, and the committee for rights and freedoms of the European Parliament believe that what has been done is not enough. The executive order is the only path that Biden had before him, but it does not correspond exactly to a law; it intervenes at the administrative level more than at the legislative level, and even regardless of form, even in substance it builds a protection system that resembles the European one, but of course, it is not directly comparable to it.

To give an example, one cannot imagine the establishment of an independent administrative authority dealing with privacy in the USA, but rather one imagines a special court whose members would still be elected by the Department of Justice. There remain points of distance, as appreciable as what has been done is.

What should happen in Europe?

What should happen is that one should either be satisfied or not with what the USA has put on the

table in an attempt to resolve this issue, and the decision essentially lies with the European Commission; neither the opinion of the regulators nor that of the parliament is binding. I believe that the internet was born to be global and that the goal of everyone should be to return to that borderless internet where data can be exchanged. It is obvious that, for this to happen, a minimum common denominator in terms of rules is needed, and perhaps we are not there yet.

The hope is that in the coming months a new adequacy decision can be enacted by the European Commission, and that this new decision does not meet the same fate as the previous two. A new negative ruling would not be a victory for anyone. Certainly, if that is not the case, as data protection authorities, we would have to return to questioning what to do with a data transit that has never really been interrupted in practice. A topic that has ended up a bit in the corner because the agreement seemed imminent.

You talk about returning to an open and free internet, but there is a process of balkanization underway. In Russia after the invasion of Ukraine, in China for many years. Today an app like TikTok, controlled by a Chinese company, promises to localize American data in America (Project Texas) and European data in Europe (Project Clover, like the Irish four-leaf clover). The same has been done by American companies. But if with the United States, even through the TTC, the exchange and comparison is continuous, with China this discussion does not exist; there are no jurisdictional guarantees of the Cloud Act when a public authority requests access to data of European citizens. But is localization sufficient?

From my point of view, if we discuss localization that should be a vaccine against the laws to which the companies that control and process the data are subject, then localization is not an objectively relevant element. Under current rules, if the American NSA knocks on the door of one of the Big Tech companies to access the data of certain Europeans stored in Europe, the Big Tech in question could not simply respond, "I do not have the data with me, on American territory, I have it in Europe and I cannot give it to you," but would rather be quickly invited to make this data available.

However, it would be invited to do so according to the due process of law, a series of jurisdictional guarantees provided by US law (request to the Department of Justice, authorization from a judge, possible appeals and denials).

Certainly, the American company responds to American laws wherever the data it is processing is located, and presumably the Chinese company or one controlled by Chinese companies responds to Chinese laws regardless of where it technologically or physically parks the data. So if we talk about the resilience test of localization against the laws of this or that country that authorize more or less nosy governments to put their hands on that data, I believe it holds little weight. Certainly, localization produces other results, namely in the physical and commercial dimension.

put the data closer to the people to whom it refers. One cannot say that this is without value, but one must be aware, to return to the issue addressed so far regarding US-EU relations, that this is not the answer to that problem; if it were, we would not have been discussing for three years what should or should not happen, we would have simply told all the Big Tech companies (who would likely have accepted it) that the data of European citizens just needs to be located in Europe.

But the difference, I believe, is that in Europe there are no tech companies that are as large and widespread. If there were, European states would adopt (and many already do) rules similar to the Cloud Act regarding access to data once requested by a public prosecutor or an intelligence agency.

Certainly, yes, even though the regulation, the GDPR, and its counterpart applicable to the processing of personal data for justice purposes, from this point of view, underpin the right of access in a much more rigorous manner compared to what happens in the US legal system. Here, the main issue is the right to mass access, when seeking data from large groups of users for intelligence purposes, not the single case in which one seeks a single piece of evidence. On this point, there is still distrust from the European side.